

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X Index No: 600371/2021
DIANE C. DESOUSA and THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and PATRICK J.
KARCHER,

Defendants,

REPLY AFFIRMATION IN
FURTHER SUPPORT OF
DEFENDANT PATRICK J.
KARCHER'S MOTION FOR
SUMMARY JUDGMENT

Motion Seq. No. 3.

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MAXWELL RUBIN, hereby affirms, pursuant to CPLR 2106, as follows:

1. I am counsel to the law firm of Warshaw Burstein, LLP, attorneys for Defendant Karcher. I am fully familiar with the facts and circumstances set forth herein based upon my representation of Karcher in this matter.

2. I respectfully submit this Reply Affirmation in Further Support of Karcher's motion for an Order pursuant to CPLR § 3212(b), granting him summary judgment dismissing Plaintiffs' Verified Complaint in its entirety as alleged against Karcher.

3. Karcher is entitled to summary judgment dismissing Plaintiffs' Verified Complaint because: (i) Plaintiffs do not have any sustainable claims against Karcher and/or Calvagno; (ii) and even if Plaintiffs have viable claims against Calvagno, Karcher is not a necessary party to this Action; and (iii) Plaintiffs cannot obtain injunctive relief against Karcher.

4. Plaintiffs' Counsel's June 20, 2024 Affirmation in Opposition (the "Cuomo Aff.") NYSCEF No. 101 does not create a triable issue of material fact necessary to preserve the Verified Complaint against Karcher.

ARGUMENT**POINT I****PLAINTIFFS CANNOT MAINTAIN ANY OF THEIR CAUSES
OF ACTION CONCERNING CALVAGNO'S USE OF HIS RESIDENCE**

5. The Verified Complaint has three main allegations: (i) that Calvagno's use of his Dodge Charger Hellcat (the "Hellcat") has caused a nuisance and inflicted emotional distress upon Plaintiffs; (ii) that Calvagno's unauthorized rental of boat slips during the 2020 boating season and unauthorized hosting of two social events in 2020 or 2021 constituted a nuisance due to increased traffic and street parking; and (iii) that Calvagno failed to properly maintain his garbage during construction of a new driveway and fails to properly place his garbage on the street in covered containers.

6. Even if Plaintiffs' opposition is given an inference that the allegations are true, it is uncontested, that Karcher has no ownership interest or control over Calvagno's use of his Hellcat. Therefore, there is no basis to maintain any of Plaintiffs' allegations concerning Calvagno's use of his Hellcat against Karcher, including Plaintiffs' claim for intentional infliction of emotional distress.

7. Next, since Karcher does not reside at the Calvagno Residence, he has no control over Calvagno's maintenance and/or placement of construction debris and/or garbage on the street. Therefore, there is no basis to maintain any of Plaintiffs' allegations concerning Calvagno's alleged failure to properly maintain and dispose of trash.

8. Plaintiffs can obtain complete relief against Calvagno for these allegations, and including Karcher in a decision is unnecessary.

9. In their opposition, Plaintiffs concede that Karcher is a named defendant due to having co-signed Calvagno's mortgage when he purchased his Residence. Plaintiffs did not refute Karcher's assertion that the Plaintiffs have never met Karcher.

10. Even with Karcher co-signing Calvagno's mortgage, Plaintiffs cannot maintain the remaining claims against any of the Defendants arising from Calvagno's alleged rental of boat slips during the 2020 boating season and hosting two social events in 2020 and 2021 because their allegations do not rise to the level necessary to constitute a nuisance.

11. Plaintiffs testified that during the 2020 boating season, Calvagno allegedly rented boat slips behind his Residence. The rental of these boat slips allegedly damaged Plaintiffs because more people parked on the street in front of their Residence:

Q: Have you ever seen any rental agreements that would reflect boats being rented in the back of the home?

A: No, I have not, but I witnessed cars parked in the street that got to their boats back and forth from their boats. They park in the street, park in front of my house.

See NYSCEF No. [40](#), at p. 46, Lines 2-8.

* * *

Q: Are you aware, is it illegal to park in front of your neighbor's home?

A: No.

Q: Did you call the police when they were parked in front of your house?

A: No.

Id., at p. 97, Lines 17-22.

12. Plaintiffs produced nothing to demonstrate that Calvagno rented boat slips behind his residence. Even if he did rent boat slips, Plaintiffs have not demonstrated any interference beyond cars parking in front of their house. Alleged street traffic and street parking does not rise to the level necessary to be deemed a nuisance. "To recover damages based on the tort of private

nuisance, a plaintiff must establish an interference with the use or enjoyment of land, substantial in nature, intentional or negligent in origin, unreasonable in character, and caused by the defendants' conduct." [Anderson v. Elliott, 24 A.D.3d 400, 401-402 \(2d Dep't 2005\)](#) (Holding that "the alleged disturbance that was caused by the defendants' television filing on several occasions did not, as a matter of law, rise to the level of substantial interference with the plaintiffs' use and enjoyment of their properties as to constitute a private nuisance.")

13. "Things merely disagreeable, however, which simply displease the eye no matter how irritating or unpleasant, are not nuisances." [Ruscito v. Swaine, Inc., 17 A.D.3d 560, 561 \(2d Dep't 2005\)](#) quoting [Dugway, Ltd. v. Fizzinoglia, 166 A.D.2d 836, 837 \(3d Dep't 1990\)](#). "In order to establish nuisance the inconvenience and interference complained of must not be fanciful, slight, or theoretical, but certain and substantial, and must interfere with the physical comfort of the ordinarily reasonable person." [Dugway, 166 A.D.2d at 837](#), quoting [81 N.Y. Jur. 2d, Nuisances § 16 at 332](#).

14. Plaintiffs have not demonstrated that it is illegal to park on the street in front of their residence in Amityville. Plaintiffs have not demonstrated that Calvagno's use of boat slips actually interfered with their lives to level necessary to constitute a nuisance. Plaintiffs do not allege, let alone establish, any interference with the right to use and enjoy their residence. [Banschick v. Johnson, 222 A.D.3d 608, 609 \(2d Dep't 2023\)](#) quoting [Thomas v. Trustees of the Freeholders and Commonality of Town of Southampton, 202 A.D.3d 858, 864 \(2d Dep't 2022\)](#).

15. Likewise, even if Calvagno did host two social events in 2020 and 2021, that does not rise to the level of a nuisance. "The record contains evidence of only two discrete periods of intermittent noise." [Hutcherson v. Hill, 161 A.D.3d 495, 495 \(1st Dep't 2018\)](#) (granting summary judgment on nuisance claim based on two independent noise allegations). "The plaintiff's evidence

of nuisance consisted of three instances of excessive noise over the course of approximately three years.” [Harris v. Miranda, 219 A.D.3d 1498, 1499 \(2d Dep’t 2023\)](#) (denying plaintiff’s motion for summary judgment based on three events of noise over three years).

16. Mr. DeSousa testified that these two, and only two, social events were held years ago:

Q: You state that ‘Defendants have rented out parts of the property for parties,’ correct?

A: Yes.

Q: How do you know that?

A: How do I know, because he had a wedding at the house in October of – I think it was 2020 or 2021.

See NYSCEF No. [40](#), at p. 47, Lines 9-16.

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Q: You’ve never seen any rental agreements for the purposes of renting homes out for parties?

A: No, I have not.

Q: By the way, you’ve only mentioned, at least in paragraph 30, I believe its two occasions; is that correct?

A: Yes.

See NYSCEF No. [40](#), at p. 48, Line 24 – p. 49, Line 7.

17. Two independent events held more than 3 years ago do not constitute the inconvenience and interference necessary to constitute a nuisance.

18. Plaintiffs’ claims arising from Calvagno’s Hellcat and failure to properly maintain garbage do not apply to, or affect, Karcher in any manner, therefore, these allegations are irrelevant and cannot be used to defeat Karcher’s motion for summary judgment. Plaintiffs cannot maintain any claims for nuisance against Calvagno for allegedly renting boat slips during the 2020 boating season and holding two social events in 2020 and 2021. Therefore, Plaintiffs cannot overcome

Karcher's prima facie entitlement to summary judgment, and Karcher's motion for summary judgment should be granted in its entirety.

POINT II

CPLR § 1001 IS INAPPLICABLE

19. In their opposition Plaintiffs argue that Karcher's motion for summary judgment should be denied in part pursuant to CPLR § 1001 because Karcher is a necessary party to Plaintiffs' nuisance causes of action. Plaintiffs are legally incorrect. Plaintiffs can obtain complete relief for all allegations in their Verified Complaint solely against Calvagno.

20. It is undisputed that Karcher has no involvement whatsoever with Calvagno's Hellcat and trash maintenance, therefore, those allegations are insufficient to bind Karcher as a necessary party.

21. Karcher does not reside at the Calvagno Residence. Plaintiffs do not allege that Karcher has threatened to rent boat slips and/or threatened to hold social events. Plaintiffs are seeking to restrain Calvagno from acting. Plaintiffs are not seeking to restrain the use of the Calvagno Residence or anything that Karcher can control. Plaintiffs cannot obtain injunctive relief against Karcher based on speculation that Karcher may act without any credible basis. [Dugway, 166 A.D.2d at 837](#).

22. Moreover, classifying Karcher as a necessary party does not make sense because Karcher would be required to attend a trial and defend himself against claims that admittedly have nothing to do with him.

23. Plaintiffs' citation to [Stanley v. Amalithone Realty, Inc., 31 Misc.3d 995, 998 \(Sup. Ct. N.Y. Co. 2011\)](#) is irrelevant because in *Stanley* the parties did not name AT&T, the entity that owned the contested cell phone tower. "In the present case, plaintiffs did not join AT & T, the

wireless carrier, as a party to this action. AT & T as the omitted party would be inequitably affected by a judgment in this action and therefore it is a necessary party.” Id at 999. In the case at bar, Karcher will not be inequitably affected by any decision in this case since he does not, and will not, reside at the Calvagno Residence.

24. Plaintiffs’ citation to [Hitchcock v. Boyack, 277 A.D.2d 557 \(3d Dep’t 2000\)](#) is irrelevant because in [Hitchcock](#) the plaintiff alleged “that defendants improperly interfered with plaintiff’s use of the roadway and beach.” [Hitchcock, 277 A.D.2d at 557](#). The Third Department further held that “[s]ince property owners not named as parties in the instant action would certainly be affected by any determination regarding whether plaintiff has legal rights to use of the roadway and beach, we find that such property owners are necessary parties to the within action. Since they were not named, the complaint must be dismissed.” [Hitchcock, 277 A.D.2d at 558](#).

25. In this case Plaintiffs concede that Karcher has not improperly done anything. Therefore, [Hitchcock](#) should be disregarded.

26. Likewise, the 1872 case of [Hitchins v. Smith, 1872 WL 9619 at * 1 \(Sup. Ct. N.Y. Co., Jan. 1, 1872\)](#) is inapplicable because the complained of kilns, were erected by both defendants. “Where, by the erection and use of lime kilns by the defendants, upon their own premises, in close proximity to the residence of the plaintiff, the plaintiff’s premises were, by reason of the smoke, gas and dust issuing from the kilns, rendered unfit for a comfortable habitation....” [Hitchins, 1872 WL 9619 at * 1](#). Like [Hitchcock](#), there are no allegations that Karcher has even met the Plaintiffs. Plaintiffs can obtain complete relief against Calvagno alone. Therefore, Karcher is not a necessary party to this action and his co-ownership of the Calvagno Residence is irrelevant.

27. For the reasons set forth by Karcher, there is no basis to maintain the Verified Complaint against Karcher and summary judgment should be granted.

28. Pursuant to CPLR 2106, I affirm this 25th day of June 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true and I understand that this document may be filed in an action or proceeding in a court of law.

WHEREFORE, for the following reasons, as well as the reasons set forth in Karcher's moving papers, it is respectfully requested that Karcher's motion for summary judgment be granted in its entirety.

Dated: New York, New York
June 25, 2024

Maxwell Rubin
MAXWELL RUBIN

Certification Pursuant to Uniform Rules 202.8-b(c)

I affirm that the word count of the Affirmation in Support, excluding the caption, and signature block is 1,976. This document complies with the word count limit set forth in Uniform Rule 202.8-b(a).

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